

**RECORD OF PROCEEDINGS FOR THE GOVERNING BODY
OF THE CITY OF CHEYENNE**
Office of City Clerk

October 27, 2008

The Governing Body of the City of Cheyenne met in regular session on this date at 6:00 p.m. in Council Chambers. Present were: MAYOR-Jack R. Spiker; COUNCIL MEMBERS-Mr. Brown, Ms. Broyles, Ms. Case, Mr. Collins, Mr. Laybourn, Mr. Pierson, Dr. Rinne, Mr. Segrave and Mr. Valdez. The pledge of allegiance was recited.

Also present: Carol Intlekofer, City Clerk; Barb Dorr, City Treasurer, and Bob Nicholas, Acting City Attorney.

Consent Agenda. (All agenda items listed with the designation of [CA] are considered to be routine items by the governing body and will be enacted by one motion. There will be no separate discussion on these items unless a member of the governing body so requests, in which event the item will be removed from the Consent Agenda and considered in its normal sequence on the agenda.) Upon request by Ms. Case and Mr. Laybourn, Mayor Spiker announced agenda items #25(a)(b)(c)(d), 26(a)(b)(c)(d)(f), 27(b), 28(a) and (b) would be removed from the consent agenda. Mr. Collins moved to approve remaining Consent Agenda items, seconded by Mr. Brown. Motion carried. Voting "yes" – all members of the governing body with the exception of Mr. Laybourn voting "no".

[CA] MINUTES FROM REGULAR MEETING OF THE GOVERNING BODY ON OCTOBER 13, 2008. Motion (per consent agenda) carried.

[CA] MINUTES FROM VOUCHERS MEETING OF THE GOVERNING BODY ON OCTOBER 20, 2008. Motion (per consent agenda) carried.

Mr. Segrave moved to approve payment of vouchers as presented, seconded by Mr. Valdez. Upon inquiry, Ms. Dorr provided information available on vouchers payable to: Bouquets Unlimited (\$170.65), settlement of claim; Bresnan Communications LLC, (\$28.05), cable rate increase for television located at Neighborhood Facility; Gap West Broadcasting, (\$304.00), weekly radio spot for Taco John's Events Center (TJEC), and Skinner Law Firm, (\$45,280.00), laser tag system at TJEC. Upon inquiry, Rick Parish, Director of Parks and Recreation, provided additional information on utilization of the television at the Neighborhood Facility, and Mandy Liley, TJEC Director, explained the laser tag system was purchased from the Skinner Law Firm, who had held the asset in a trust account. Motion carried. Voting "yes" – all members of the governing body with the exception of Ms. Case and Mr. Laybourn voting "no".

Mr. Collins briefly commented on Robert's Rules of Order, as adopted by the governing body, relative to limiting debate time for discussion by governing body members. Mr. Collins moved to limit debate, for the current meeting only, to a maximum of 10 minutes for any member of the governing body to talk on any one motion, seconded by Mr. Segrave. Upon

inquiry, Bob Nicholas, Acting City Attorney, clarified the motion was not debatable. Mr. Laybourn raised a point of order, questioning who would serve as time-keeper and how notification would be provided. Mayor Spiker advised Staff Attorney Bob Mason would act as time-keeper and would alert members on how much speaking had elapsed and status of remaining speaking time. Motion carried. Voting “yes” – all members of the governing body with the exception of Ms. Case and Mr. Laybourn voting “no”.

Mayor Spiker opened a public hearing for the purpose of receiving comments and input to determine whether compliance of annexation conditions required by Wyo. Stat. § 15-1-402 exists for the property described as being situated in Sections 11 & 12, T.13N., R.67W., of the 6th P.M., Laramie County, Wyoming (located along Clear Creek south of and including I-80 right-of-way and east of and including I-25 right-of-way). Brandon Cammarata, Urban Planning Office, reviewed requirements and compliance of conditions contained in Wyo. Stat. §15-1-402, including specific information indicating compliance with Wyo. Stat. §15-1-402(a)(i) through (vi). Upon inquiry by John Fafoutakis on location of the property, Mayor Spiker advised the property is west of Southwest Drive. Individuals speaking at the hearing were: Gay Woodhouse, attorney representing residents in the area; J. Fred Volk, Mr. Fafoutakis, Kay Sheehan and Leo Garcia. Topics discussed included: Railroad crossing safety and traffic volume and congestion concerns; access issues; emergency responder concerns; 201 agreement relative to replacement of septic systems; Wyo. Stat. §15-1-402 criteria; sewer hookups in the area; traffic volumes and safety issues due to I-25 and College Dr. intersection, and developer infrastructure responsibilities. During her comments, Ms. Woodhouse referenced evidence that had been submitted in August and requested the material be entered into the record in conjunction with her comments at the current public hearing. Comments by members of the governing body included annexation procedures; property ownership and proposed use (unknown) of the area proposed to be annexed; developer responsibility involving infrastructure, and utilization of visual displays during City Council meetings. Upon inquiry, Mr. Cammarata reviewed the public notification and public hearing process for proposed annexations, and Brad Emmons, AVI Engineering and agent for the applicant, provided property ownership information and advised a definite use for the area has not yet been disclosed by the owner. There being no further comments or input and purpose of the hearing having been met, Mayor Spiker closed the hearing.

Mayor Spiker opened a public meeting for the purpose of receiving comments and input on declaring the intention of the 1995-1998 1% optional sales tax funding designated in Resolution 3565, as \$250,000 for unpaved streets – revolving loan guarantee account, as met and approving re-designation of the fund to be used for expanding infrastructure associated with a Habitat for Humanity (HFH) project on Messenger Court and McCann Avenue. Brandon Cammarata, Urban Planning Office, briefly outlined a proposal for reallocating 1995-1998 1% optional sales tax funding designated as a revolving loan account to assist with paving of road costs, stating there have been no requests for loans for approximately 10 years. He provided information on the proposed use of the funding to assist with a current HFH housing project (road development and improvements); stated another revolving loan fund through the City is available to assist property owners with similar infrastructure costs, and explained the 1995-1998 1% loan program was to aid property owners with street infrastructure costs. Upon inquiry, Barb Dorr, City Treasurer, provided information on remaining monies from the 1995-1998 1% fund,

indicating all specified projects have been fully funded and completed. Comments followed on utilizing the funds for roads the public has advised they want improved. Fran Smyth, Habitat for Humanity, advised Messenger Ct. was recently created as a subdivision that will house low income families and the HFH project will clean up the area by paving roads, assisting with drainage, creating a Greenway path, installing curb, sidewalk, and gutter, and installing sewer and water infrastructure. She discussed HFH and City partnership cost savings. Comments followed on uniformity of standards for development infrastructure, use of tax dollars, affordable housing, CDBG funding assistance for the HFH project, anticipated construction time frame for the housing development street improvements. Upon inquiry, Mr. Cammarata provided information on the purpose of the public meeting and construction time frame for laying asphalt, and Ken Lewis, City Engineer, advised, due to the seasonal time frame when asphalt plants generally shut down, the project may not be completed until next spring. During comments on previous uses of 5th penny 1% sales tax monies, Mr. Segrave raised a point of order that comments were not germane to the purpose of the hearing with Mayor Spiker concurring that discussion should remain on-topic. There being no further comments or input and purpose of the public meeting having been met, Mayor Spiker closed the public meeting.

“AN ORDINANCE AMENDING SECTION 2.64.090, DEMOLITION PERMIT REVIEW, OF CHAPTER 2.64, HISTORIC PRESERVATION BOARD, OF TITLE 2, ADMINISTRATION AND PERSONNEL, OF THE CHEYENNE CITY CODE, PERTAINING TO APPLICATIONS FOR DEMOLITION AND MOVING PERMITS INVOLVING CERTAIN BUILDINGS AND STRUCTURES.” Reporting for Public Services Committee, Mr. Collins advised there was no recommendation on the item from Committee. Speaking in opposition to the ordinance, Sabrina Matthews, shared information on her experience involving efforts to “save” a house within an historic district by moving the structure to another site, and the extensive time frame involved to acquire permit approval, indicating a reasonable time frame should be set for reviewing/processing applications for demolition and moving permits. She expressed her belief that the Historic Preservation board should not control a personal property owner’s rights, but should assist and guide what can be done with an historic property. House District 11 Representative Mary Throne spoke in favor of the ordinance and expressed the intent of the ordinance is to protect and preserve the character of an historic neighborhood and that allowing historical structures to be moved out of a district defeats the purpose of the Historic Preservation board and designation of a specially protected district. Mr. Collins moved to approve on third and final reading, seconded by Ms. Broyles. Discussion followed on the physical condition of premises within the Governors’ Mansion Historic area involving recent demolition actions; current process involved in reviewing and approving/disapproving demolition permits for properties located in an historic district; purpose and authority of the Historic Preservation board and its ability to deny a demolition permit; initial intent of Historic Preservation board review of demolition permit applications; concern with property owners’ ability to have control of personal property interests; burden on property owners relative to the permitting process, and potential expense to property owners involving appeal of a decision by the Historic Preservation board to deny a permit(s). Motion failed (due to a tie vote). Voting “yes” – Ms. Broyles, Ms. Case, Mr. Collins, Mr. Laybourn and Dr. Rinne. Voting “no” – Mr. Brown, Mr. Pierson, Mr. Segrave, Mr. Valdez and Mayor Spiker.

“AN ORDINANCE DELETING AND RECREATING SECTION 2.04.142 (C), CONSENT AGENDA, OF TITLE 2, ADMINISTRATION AND PERSONNEL, OF CHAPTER 2.04, MAYOR AND CITY COUNCIL, OF THE CHEYENNE CITY CODE, PERTAINING TO THE MEETING AGENDA FORMAT FOR REGULAR MEETINGS OF THE GOVERNING BODY OF THE CITY OF CHEYENNE.” Speaking in opposition to the ordinance generally were: John Fafoutakis, Jack Quirk, Edward Melko, Amber Ash, Beth Rulli and George Halyak. Concerns expressed involved the following topics: Equal protection and first amendment rights; freedom of speech, elected officials’ commitment to office and dedication of time involved; democratic process; length of meetings; constituent representation, and use of Robert’s Rules of Order for efficient conduct of meetings. Steve Freudenthal spoke in favor of a proposed substitute ordinance, stating his belief that the substitute embodies a “balancing” between the majority and minority. He explained the substitute provides that ordinances will not be included on a consent agenda and that removal of an eligible consent agenda item(s) would require the concurrence of two other members of the governing body. He commented that concerns raised relating to suppression of free speech is without substance; made statements relating to the democratic process, and encouraged effective meetings involving the use of the public’s time. Mr. Collins reported there was no recommendation on the item from Public Services Committee. Mr. Collins moved to approve, seconded by Mr. Segrave. Mr. Collins moved to amend by substitute ordinance, seconded by Mr. Segrave. Upon inquiry by Mr. Halyak concerning the proposed substitute, Mayor Spiker stated the substitute would require that a request by a Council member to remove a Consent Agenda item(s) must be concurred by two City Council members; that ordinances will not be placed on a Consent Agenda, and that a member of the public can request a Council person to remove an item. Commenting on the motion to amend by substitute were: Louise Waters, Mr. Quirk, Mr. Melko, Pacomio Sandoval, Gloria Milmont, J. Fred Volk and Dan Zwonitzer. Topics included: procedural concerns; support and non support for the substitute; listening to constituents concerns and comments; adherence with U.S. Constitution, and suggestion of postponing action on the substitute in conjunction with final reading. It was noted the proposed substitute was submitted and reviewed at Public Services Committee. Following a 10 minute recess to enable copies of the proposed substitute be provided to interested members of the audience, Mayor Spiker reconvened the meeting at 8:30 p.m. Further inquiry and comments were provided by Ms. Waters and Mr. Fafoutakis. Discussion followed on language contained in the proposed substitute; Public Services Committee agenda item review process resulting in a lack of a recommendation; procedural concerns; public participation and opportunity to request a Council member to remove an item(s); managing debate, support/non-support of the proposed substitute, and meeting efficiency. Motion to amend carried. Voting “yes” – all members of the governing body with the exception of Ms. Case, Mr. Laybourn and Mr. Valdez voting “no”. Comments on main motion followed and included Council members’ responsibilities, public interaction, civility, managing debate, and support for following Robert’s Rules of Order when conducting meetings. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body with the exception of Ms. Case, Mr. Laybourn, Dr. Rinne and Mr. Valdez voting “no”. (#3830)

“AN ORDINANCE AMENDING SECTION 6.12.020, RABIES TAGS, OF CHAPTER 6.12, DOG AND CAT REGISTRATION, AND SECTION 6.16.020, RABIES VACCINATION REQUIRED, OF CHAPTER 6.16, RABIES CONTROL, OF TITLE 6, ANIMALS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING.” Judy Johnstone and Jeannine Stallings

spoke in favor of the ordinance. Topics included: Providing a time frame option for owners to acquire rabies vaccinations for pets; support for annual veterinarian health care visits for pets; vaccine supply availability for humans exposed to rabies, and suggestion that the ordinance be postponed for further review concerning the dual vaccination and registration process involving Cheyenne Animal Control. Gus Lopez, City-County Health Director, advised the Health Board supports tabling of the item to allow for further review involving the vaccination time frame proposed. Mr. Collins moved to approve on third and final reading, seconded by Mr. Valdez. Mr. Valdez moved to postpone for two weeks, seconded by Ms. Case. Following discussion on the postponement term, Mr. Valdez amended his motion to change the postponement time frame to 30 days (to Nov. 24, 2008), with concurrence by Ms. Case as second to the motion. Ms. Johnstone spoke in favor of further discussion on animal licensing/registration issues and involvement by local veterinarians. It was advised postponement will allow local veterinarians an opportunity to provide input. Upon inquiry, Mr. Lopez advised the Board expressed some concerns with the 3 year vaccine time frame, and briefly reviewed County vaccination requirements. Discussion followed on animal safety and health issues, over-vaccination, receiving input and information from veterinarians on vaccination concerns and animal care exams, and responsible pet owners. It was advised if the motion to postpone is approved, the ordinance will be back on the Nov. 24th meeting agenda for referral (no action) to Public Services Committee. Motion to postpone for 30 days (to Nov. 24, 2008) carried. Voting “yes” – Ms. Broyles, Ms. Case, Mr. Laybourn, Mr. Pierson, Mr. Valdez and Mayor Spiker. Voting “no” – Mr. Brown, Mr. Collins, Dr. Rinne and Mr. Segrave.

“AN ORDINANCE AMENDING TITLE 5, BUSINESS LICENSES AND REGULATIONS, CHAPTER 5.12, ALCOHOLIC BEVERAGES, SECTION 5.12.090 (B), MINORS-DISPENSING ROOM RESTRICTIONS, OF THE CODE OF THE CITY OF CHEYENNE, WYOMING, CONCERNING MINORS EMPLOYED IN A RESTAURANT AND FULL SERVICE RESTAURANT ENVIRONMENT.” Due to postponement from August 25, 2008, the item was referred to Public Services Committee.

“AN ORDINANCE AMENDING TITLE 17, ZONING, CHAPTER 17.08, ZONING DISTRICTS ESTABLISHED AND SECTION 17.08.040 CHEYENNE CITY MAP OF THE CHEYENNE CITY CODE 2002, BY CHANGING THE ZONING CLASSIFICATION FROM LR-2 LOW-DENSITY RESIDENTIAL-DEVELOPING DISTRICT TO NB NEIGHBORHOOD BUSINESS DISTRICT FOR THE SOUTH 130-FEET OF THE WEST 100-FEET OF TRACT 2, SKYLINE TRACTS, CHEYENNE, WYOMING (LOCATED AT THE NORTHEAST CORNER OF THE INTERSECTION OF STOREY BOULEVARD AND SYCAMORE ROAD).” Dr. Rinne declared a conflict of interest (nearby property owner interests) and vacated Council Chambers. Heather and Bob Parry, owners of the property proposed to be re-zoned, spoke in favor of the proposed zone change; provided information on their business operation and intent for re-location of the business at the site, and discussed maintaining the residential appearance of the house, anticipated customer volume, store hours and products that may be offered. Rick Hunnicutt, Western Development Corp. and Donna Hunnicutt Trust, spoke in support of the zone change and discussed development plans (townhouses and possible commercial/small retail) for adjacent property owned by the corporation and trust. Speaking in support of the zone change were: Tammy Skala, Monique Elliott, Brandon Bailey and Mr. Parry. Topics discussed included: Support for entrepreneurial endeavors; items proposed to be

offered at the business; retaining residential appearance of the house, and opportunity for local artists to display and provide items for sale at the business. Speaking in opposition to the zone change were: Sharon Knudson, Gloria Milmont, Jack Knudson, Kathryn Kunz and April Brimmer Kunz. Topics presented included: Concerns with a business environment in an established residential neighborhood and potential future commercial/retail businesses; remodeling of the property prior to receiving zone change approval; retaining physical neighborhood residential appearance on the north side of Storey Blvd.; traffic flow, volume and access issues; possible MUR zone classification as an option; PlanCheyenne guidelines and long range plans for north side of Storey Blvd. and Storey Extension (east); spot zoning; other governing body actions denying zone changes for similar purposes, and area retail developments. Amber Ash commented on the role of home businesses relative to community economic development and support for entrepreneurial opportunities. Debb Roden, Woodhouse Law Office, representing Mr. and Mrs. Parry, spoke in favor of the zone change, expressed that the change is not a spot zoning issue, and discussed remodeling of the property and the Parry's research and decision to purchase the property. She provided a handout on conditional zoning restrictions the property owners were willing to compromise on if ordinance is approved (on file with office of City Clerk), reviewed consistency between PlanCheyenne and City Code; indicated the character of the building, which looks like a home, will remain, and commented on unique products, including those offered by local artists, that will be available at the business. Mr. Collins advised there was no recommendation on the item from Public Services Committee. Mr. Brown moved to approve on second reading, seconded by Mr. Segrave. Upon request, City Clerk Carol Intlekofer reviewed the ordinance's procedural history since its introduction on the agenda, and its current status for action (i.e. 2nd reading) before the governing body. Upon inquiry, Martin Matsen, Development Director, advised if conditional zoning use limitations were placed on the property, the use restrictions would be tracked through the GIS system. Comment was made concerning conditional uses as affiliated with any future property owner (deed) changes. Mr. Segrave moved to amend to conditionally zone the property as a neighborhood business zone with the property uses by right limited to retail sales and offices within the existing building and the sale and storage of equipment and supplies conducted only within the building, and that no other uses shall be allowed by administrative or board approval, seconded by Mr. Pierson. Ms. Brimmer-Kunz commented that if the zone change was approved, she supported the motion to place conditional zone limitations, and questioned how the conditions would be applied to a property deed. Upon inquiry, Mr. Matsen provided information on administrative "flagging" of the conditions, including a notation on the zone map, and advised he was unsure how a condition would be handled on deeds. He clarified notification of legal zoning uses of property to real estate agents is not required and typically a buyer or their agent makes inquiry. Comments followed on the conditional use restrictions; neighborhood protection while fitting with the property owners' needs, and concern with precedent setting. Motion to amend carried. Voting "yes" – all members of the governing body present in Council Chambers with the exception of Mr. Laybourn voting "no". Brief discussion followed on spot zones, PlanCheyenne document, and development. Main motion as amended carried. Voting "yes" – all members of the governing body present in Council Chambers with the exception of Ms. Case, Mr. Collins and Mr. Laybourn voting "no".

Following a ten minute recess, Mayor Spiker reconvened the meeting at 10:45 p.m. Dr. Rinne returned to Council Chambers.

“AN ORDINANCE AMENDING SECTIONS 2.04.040, 2.04.160 AND 2.04.170 OF TITLE 2, ADMINISTRATION AND PERSONNEL, CHAPTER 2.04, MAYOR AND CITY COUNCIL, OF THE CHEYENNE CITY CODE TO PROVIDE FOR A CLERICAL CORRECTION, AND TO CLARIFY STATE LAW PROVISIONS CONCERNING READINGS OF ORDINANCES AND REQUIRED VOTE.” Mr. Collins moved to approve on second reading, seconded by Mr. Segrave. Upon inquiry, City Clerk Carol Intlekofer provided information on the clerical correction and proposed clarification of city code language to match state statute wording. She reviewed the “old” city code language vs. the “new” language and provided information on public readings of ordinances. Motion carried. Voting “yes” – all members of the governing body.

“AN ORDINANCE AMENDING CERTAIN CHAPTERS AND SECTIONS OF TITLE 17, ZONING, OF THE CHEYENNE CITY CODE BY ADDING CHURCHES AS A USE REQUIRING ADMINISTRATIVE APPROVAL IN THE FOLLOWING ZONE DISTRICTS: NB-NEIGHBORHOOD BUSINESS DISTRICT, CB-COMMUNITY BUSINESS DISTRICT, MUR-MIXED USE WITH RESIDENTIAL EMPHASIS DISTRICT, MUB-MIXED USE WITH BUSINESS EMPHASIS DISTRICT, AND BY ADDING CHURCHES AS A USE REQUIRING BOARD APPROVAL IN THE LI-LIGHT INDUSTRIAL DISTRICT” -- referred to Public Services Committee (sponsors – Mr. Brown, Ms. Broyles, Mr. Collins, Mr. Laybourn, Mr. Pierson, Dr. Rinne, Mr. Segrave and Mr. Valdez)

“A RESOLUTION DETERMINING THAT CONDITIONS FOR ANNEXATION REQUIRED BY WYO. STAT. §15-1-402 EXIST FOR PROPERTIES SITUATED IN A PORTION OF SECTION 1, 12, AND 17, T.13N., R.67W., 6TH P.M., LARAMIE COUNTY, WY (LOCATED SOUTH OF I-80 AND PREDOMINANTLY EAST OF SOUTHWEST DRIVE).” John Fafoutakis spoke in opposition to proposed annexation, citing concerns with safety. Mr. Collins moved to adopt, seconded by Mr. Brown. Mr. Collins moved to postpone for two weeks (to Nov. 10, 2008) at the request of the developer, seconded by Mr. Brown. Comments followed in support and non-support of postponement; developer’s written request to postpone to further address resolution of issues and concerns previously raised, and past practice of considering a developer’s request for postponement. Motion to postpone carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”.

“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF WYOMING GRAND, 3RD FILING, A REPLAT OF VACATED MCCOMB AVENUE BETWEEN WEST LINCOLNWAY (16TH STREET) AND 17TH STREET; VACATED 16-FOOT ALLEY SITUATED WITHIN BLOCK 401 AND THAT PORTION OF LOTS 3, 4 & 5, BLOCK 401, CHEYENNE WYOMING (LOCATED EAST OF STINSON AVENUE, BETWEEN W. LINCOLNWAY AND W. 17TH STREET).” Mr. Collins moved to adopt with staff recommendations #1 through 4, seconded by Ms. Broyles. Motion carried. Voting “yes” – all members of the governing body. (#5078)

“A RESOLUTION AUTHORIZING THE MAYOR AND THE CITY CLERK TO SIGN A FINAL PLAT OF SUNDANCE RIDGE I, A REPLAT OF TRACTS 2 AND 3, EXCEPT THE SOUTH 130-FEET OF THE WEST 100-FEET OF TRACT 2, SKYLINE TRACTS, CHEYENNE, WYOMING (LOCATED BETWEEN STOREY BOULEVARD AND SKYLINE

DRIVE, ON BOTH SIDES OF SYCAMORE ROAD).” Mr. Collins moved to adopt with staff recommendations #1 through 5, seconded by Mr. Brown. Upon inquiry concerning a staff request to postpone the item for two weeks, Lisa Pafford, Asst. Development Director, advised staff recommendation #4, involving the drainage easement, is not yet resolved and that was the reason for the postponement request. Rick Hunnicutt, Western Development, advised he would be willing to work with city staff to resolve the drainage issues rather than postpone the item. Mr. Collins, with concurrence by Mr. Brown as the second to the motion, amended the motion to adopt with staff recommendations #1 through 5 to include adoption was also contingent upon resolution of staff recommendation #4, as approved by the City Engineer and including any map alterations that may be necessary, prior to map finalization and acquisition of signatures on the final plat map. Motion carried. Voting “yes” – all members of the governing body with the exception of Ms. Case and Mr. Laybourn voting “no”. (#5079)

[CA] “A RESOLUTION GRANTING AN EXCEPTION FOR DEVELOPMENT OF A TEMPORARY SMALL WASTEWATER SYSTEM PURSUANT TO THE “201 AGREEMENT” FOR PROPERTY DESCRIBED AS LOT 1, BLOCK 1, SOUTH CHEYENNE HIGH SCHOOL SUBDIVISION OF SECTION 7, T. 13N., R. 66W., OF THE 6TH P.M., CHEYENNE, LARAMIE COUNTY, WY” -- referred to Public Services Committee (sponsor - Mr. Valdez).

[CA] “A RESOLUTION DECLARING AS SURPLUS CITY-OWNED PROPERTY DESCRIBED GENERALLY AS A FRACTION OF BLOCK 553, ORIGINAL CITY, CHEYENNE, LARAMIE COUNTY, WYOMING (LOCATED SOUTH OF 9TH STREET AND EAST OF DUFF AVENUE), AND AUTHORIZING THE CITY CLERK TO PROCEED WITH THE SALE OF SAID PROPERTY TO SCHROLL CABINETS, INC., IN ACCORDANCE WITH WYO. STAT. §15-1-112(B)(I)(D), TO BENEFIT THE ECONOMIC DEVELOPMENT OF THE MUNICIPALITY” -- referred to Finance Committee (sponsor - Mr. Segrave).

[CA] “A RESOLUTION DECLARING THE INTENTION OF THE 1995-1998 1% OPTIONAL SALES TAX FUNDING, DESIGNATED IN RESOLUTION NO. 3565 AS \$250,000.00 FOR UNPAVED STREETS - REVOLVING LOAN GUARANTEE ACCOUNT, AS MET AND APPROVING RE DESIGNATION OF THE FUND TO BE USED FOR EXPANDING INFRASTRUCTURE ASSOCIATED WITH A HABITAT FOR HUMANITY PROJECT ON MESSENGER COURT AND MCCANN AVENUE” -- referred to Finance Committee (sponsors - Mr. Brown and Ms. Broyles).

[CA] “A RESOLUTION REPEALING RESOLUTION NO. 3921 WHICH ESTABLISHED PROCEDURES FOR THE ESTABLISHMENT OF A DESIGNATED REVOLVING FUND FOR THE PAVING OF UNPAVED STREETS (1995-1998 1% SALES TAX) -- referred to Finance Committee (sponsors - Mr. Brown and Ms. Broyles).

[CA] “A RESOLUTION REPEALING RESOLUTION NO. 4992; CREATING A NEW RESOLUTION ESTABLISHING GOLF COURSE USER FEES AND CATEGORIES FOR THE AIRPORT GOLF COURSE AND KINGHAM PRAIRIE VIEW GOLF COURSE; AND PROVIDING FOR THE DIVISION OF REVENUES FROM SAID FEES TO BE DEPOSITED

BETWEEN THE GENERAL AND CAPITAL IMPROVEMENT FUNDS -- referred to Finance Committee (sponsor - Mr. Segrave).

PRELIMINARY PLATS/PRELIMINARY ZONE CHANGES:

Preliminary Plat and Preliminary Zone Change from LR-2 Low Density Residential Developing and A-1 Agricultural and Rural Residential Districts to PUD Planned Unit Development District for Pointe Village, a replat of Lot 1 and a portion of Lot 2, Block 5, The Pointe Subdivision and a portion of the N½ of the SW¼ of Section 17, T.14N., R.66W., 6th P.M., Cheyenne, Wyoming (located at the northwest corner of the intersection of Powderhouse Road and Gardenia Drive). Mr. Collins moved to acknowledge receipt of the preliminary plat and preliminary zone change with staff recommendations #1 through 9, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body.

LEASES/CONTRACTS/LEGAL:

Grant Award Agreement between the City of Cheyenne and Wyoming Office of Homeland Security to designate the Cheyenne Police Department as Administrator for Region 7 Bomb Team for FY08 Homeland Security Grant Program. Mr. Segrave moved to approve in an amount not to exceed \$176,285.71, seconded by Mr. Valdez. Upon inquiry, Police Chief Bob Fecht stated the funding will be used to purchase an explosive ordnance disposal locker, explosive ordnance disposal trucks and affiliated special equipment, and advised not all of the funds will be expended at this time and that the Department has three years in which to expend the remaining funds. Motion carried. Voting “yes” – all members of the governing body. (#5311)

Agreement between the City of Cheyenne, Police Department, and Cornerstone Programs Corporation d/b/a Jeffrey C. Wardle Academy, for juvenile housing detention services. Mr. Segrave moved to approve in an amount not to exceed \$10,000.00 per month, seconded by Mr. Valdez. Upon inquiry concerning whether the educational component of the program could be provided off-site, Erik Rasmussen, Deputy City Attorney, clarified detained juveniles can be moved from a secure location (i.e. on-site) to a non-secure location (i.e. off-site), however, additional security staff costs would be involved. Police Chief Bob Fecht stated Cornerstone’s staff are not supportive of non-facility security staff transporting juveniles due to facility licensing and security concerns. Chief Fecht provided information on the operating status of the agreement (month to month) while contract terms and funding issues were being negotiated. Discussion included: Importance of contract services; staff communication; collaboration with other organizations concerning housing of juveniles, and lack of other options available at the current time to locally house juveniles. Upon inquiry, Chief Fecht clarified the County’s detention facility does not meet federal standards to house juveniles and the Wardle Academy is the only local option county-wide and discussed facility monitoring issues and status of Department of Family Services regional coordinating meetings. Further discussion followed on facility operational concerns, lack of options, possible future regional detention facilities, privatization concerns, and federal standards required for juvenile detention facilities. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. (#5312)

Agreement between the City of Cheyenne, Office of Youth Alternatives and Laramie County, for juvenile probation services/drug/alcohol services for youth appearing in Municipal and Circuit Courts. Mr. Segrave moved to approve, seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body. (#5313)

Cooperative Agreement between the City of Cheyenne and the Wyoming Department of Transportation, for maintenance of various traffic control devices in Laramie. Mr. Segrave moved to approve, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body. (#5314)

Lease Agreement between the City of Cheyenne, Parks & Recreation, Taco John’s Events Center, and Cheyenne Capitals Youth Hockey Association, for the purpose of holding and presenting certain events. Mr. Segrave moved to approve, seconded by Mr. Valdez. Upon inquiry regarding criteria for providing discounts, Mandy Liley, Director of Taco John’s Ice and Events Center (TJEC), provided information on discount opportunities for TJEC lessees. Motion carried. Voting “yes” – all members of the governing body with the exception of Ms. Case and Mr. Laybourn voting “no”. (#5315)

[CA] Extended Warranty Agreement between the City of Cheyenne, Police Department, and Kustom Signals, Inc. for in-car video systems (1% Specific Purpose Sales and Use Tax Funds) -- referred to Finance Committee.

[CA] Authorizing the execution of a contract for purchase of real property located at 1621 Warren Avenue, Lots 3 & 4, Block 387, Original City of Cheyenne, Laramie County, Wyoming, for the development of downtown public parking) -- referred to Finance Committee.

[CA] Memorandum of Understanding between the City of Cheyenne, Parks & Recreation Dept., and the National Guard Bureau, for off-site pilot test at Mylar Park -- referred to Finance Committee.

[CA] Agreement between the City of Cheyenne, Parks & Recreation Dept., and Cheyenne Artist Guild, for lease of the Carriage House located in Holliday Park -- referred to Finance Committee.

CHANGE ORDERS/CONTRACT MODIFICATIONS:

Contract Modification No. 1 to Contract No. 5206 between the City of Cheyenne, Metropolitan Planning Organization, and David Ohde and Associates, for the West Lincolnway Streetscaping Plan - Phase II. Mr. Segrave moved to approve in an amount not to exceed \$20,200.00, seconded by Mr. Collins. Upon inquiry, Sreyoshi Chakraborty, MPO, clarified after the contract modification the total contract amount is \$49,000.00. Discussion followed on Phase I concerns involving beautification of the area. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. (#5206)

Contract Modification No. 1 to Contract No. 5183 between the City of Cheyenne, Engineering Department, and AVI Professional Corp., for the Masonway Roadway Improvement Project (2007-2010 1% Sales Tax). Mr. Segrave moved to approve in an amount not to exceed

\$7,000.00, seconded by Mr. Brown. It was clarified the modification is due to construction administration services for July through September with a total contract amount of \$63,320.00. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. (#5183)

Contract Modification No. 1 to Contract No. 5186 between the City of Cheyenne, Engineering Department, and S&S Builders, LLC, for additional construction work on the Masonway Roadway Improvement Project (2007-2010 1% Sales Tax). Mr. Segrave moved to approve in an amount not to exceed \$5,655.00, seconded by Mr. Valdez. Upon inquiry, City Engineer Ken Lewis provided information on design work and project phases involving three different engineering firms, and stated that during transitions between firms the element involved in the modification was not “picked up”. Discussion followed on area access concerns and project cost. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. (#5186)

Contract Modification No. 6 to Contract No. 4505 between the City of Cheyenne and Olsson Associates, for testing services and verifying compliance with federal funding conditions for the construction portion of the Norris Viaduct Project (1% Specific Purpose Sales and Use Tax). Mr. Segrave moved to approve in an amount not to exceed \$527,012.28, seconded by Mr. Valdez. Discussion included: concrete testing; communication concerns; professional services received; project expenses involving non-local consultants to manage the project, and Federal funding guidelines and compliance. Upon inquiry, Nathan Beauheim, Engineering Services Director, explained consultant services and budget funding; discussed construction management oversight, and advised Federal funds are involved with stringent requirements that must be met. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. (#4505)

Contract Modification No. 5 to Contract No. 3932 between the City of Cheyenne and Voyageur Asset Management Inc., for a two year extension. Mr. Segrave moved to approve, seconded by Mr. Collins. Mayor Spiker advised, due to another event, the City Treasurer had left earlier in the meeting. Discussion topics included city investments pertaining to mortgage backed securities, state statute investment restrictions, protection of principle and investment risk involving interest rates. Mr. Laybourn moved to postpone two weeks (to Nov. 10, 2008) to allow the City Treasurer to be present to provide information, seconded by Ms. Case. Motion to postpone carried. Voting “yes” – all members of the governing body with the exception of Mr. Brown and Mr. Collins voting “no”.

Contract Modification No. 1 to Contract No. 5194 between the City of Cheyenne, Engineering Department, and Ayres Associates, for additional design services for the I-180 Enhancement Project - Bridge Section (2007-2010 1% Sales Tax). Mr. Segrave moved to approve in an amount not to exceed \$29,650.00, seconded by Mr. Valdez. Upon inquiry, Nathan Beauheim, Engineering Services Director, reviewed the fence project as initially designed, WYDOT’s involvement and rejection of initial bids due to the cost. He explained the modification will re-design the fence to a simpler, more affordable design, and advised of potential additional cost areas and project delays if a different engineering firm was hired at this point. Upon inquiry, City Engineer Ken Lewis clarified issues have been identified and discussed with consultants, city staff, engineers, and WYDOT and provided information on the

increase in construction material costs. During discussion on the agenda item, Mayor Spiker ruled Mr. Laybourn out of order for an inappropriate comment. Motion carried. Voting “yes” – all members of the governing body with the exception of Mr. Laybourn voting “no”. (#5194)

[CA] Contract Modification No. 2 to Contract No. 5140 between the City of Cheyenne, Public Works Dept., and Long Building Technologies, Inc., to add the Parks Maintenance Facility located at 4500 Dell Range Blvd, Cheyenne, WY, to the Wyoming Energy Conservation Improvement Program (WYECIP) Investment Grade Audit and Project Development Contract -- referred to Finance Committee.

[CA] Contract Modification No. 1 to Contract No. 5274 between the City of Cheyenne and S&S Builders, LLC, for re-engineering of the Street and Alley Utility Vehicle Wash building eave height (2003-2006 1% Sales Tax) (2003-2006 1% Sales Tax) -- referred to Finance Committee.

[CA] Amendment No. 1 to Contract No. 5235 between the City of Cheyenne, Youth Alternatives, and the State of Wyoming, Department of Family Services, Protective Services Division, for the Community Based Family Support and Preservation Grant to extend the contract for 1 year -- referred to Finance Committee.

CONSIDERATION OF BIDS:

Consideration of Bid #M-6-09 for a contract between the City of Cheyenne, Parks & Recreation Dept., and J-2 Contracting Co., Inc., Greeley, CO, for the South Cheyenne Community Park Project (2003-2006 1% Sales Tax & 1% Specific Purpose Sales and Use Tax). Mr. Segrave moved to accept the bid from J-2 Contracting Co. Inc., Greeley, CO, in an amount not to exceed \$1,502,658.71, seconded by Mr. Valdez. Mr. Segrave moved to amend by substitute changing the not to exceed amount to \$951,396.00 for project services contained in Exhibit A, seconded by Mr. Brown. It was advised grant funding and other sources are being pursued to assist with other phases of the project. Motion to amend carried. Voting “yes” – all members of the governing body. Main motion as amended by substitute carried. Voting “yes” – all members of the governing body. (#5316)

Consideration of Bid #R-8-09 from Frontier Refining, Cheyenne, WY, for the surplus sale of 25 each, Personal Alert Safety Systems, for the Fire & Rescue. Mr. Segrave moved to accept the bid from Frontier Refining in the amount of \$525.00 (revenue to City), seconded by Mr. Collins. Motion carried. Voting “yes” – all members of the governing body.

[CA] Consideration of Bid #R-9-09 from Halladay Motors, Inc. for furnishing two (2) new 2009 ¾ ton 4-door crew cab model, 4 wheel drive pickup trucks, for the Police Department -- referred to Finance Committee.

APPOINTMENTS:

Appointment of Joel McKee to the Building Code Board of Appeals; Harvey Deselms to the Downtown Development Authority Board; Leda Pojman to the Housing and Community Development Board; Floyd Wood to the Mayor’s Council for People with Disabilities; George

“Bo” Short to the Planning Commission; Russell Pollard to the Police Civil Service Commission; Ted Lynch, Tanya Salih, Kelsey James, Ryan Ragaglia, David Carlson, Thomas Quinlivan, Beth Christensen, Reed Barrett, Ashley Woods, Karolyn Hopfensperger, Katherine Poffenbarger and Tyler Loyd to the Mayor’s Youth Council. Mr. Collins moved to approve, seconded by Mr. Segrave. Mr. Laybourn raised a point of order questioning whether the Downtown Development Association Board should instead be listed as the Downtown Development Authority Board. Mayor Spiker clarified it should be “Authority” and noted the correction. Motion carried. Voting “yes” – all members of the governing body.

Re-appointment of Matt West to the Art in Public Places Committee; Marty Crowe to the Contractor Licensing Board; Cheryl Seaberg and Marla Lewis to the Mayor’s Council for People with Disabilities; and Arlene Lowery to the Planning. Mr. Collins moved to approve, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body.

ANNOUNCEMENTS/REPORTS/MOTIONS:

Announcement was made of the appointment of Patricia Picot to the Mayor’s Council for People with Disabilities; Ryan Schelhaas to the City Planning Commission, and Kenneth McCann to the Cheyenne Regional Airport Board, to be confirmed November 10, 2008.

Announcement was made of the re-appointment of John Lyttle to the Art in Public Places Committee, and Jason Lewis to the Mayor’s Council for People with Disabilities, to be confirmed November 10, 2008.

OTHER CITY BUSINESS:

John Fafoutakis commented on the discussion time limit imposed on governing body members earlier in the meeting, and time-keeper monitoring. Staff Attorney Bob Mason provided a brief explanation of the time-keeping procedure he utilized during the meeting.

There being no further business to come before the governing body, Mr. Laybourn moved to adjourn, seconded by Mr. Brown. Motion carried. Voting “yes” – all members of the governing body with the exception of Dr. Rinne voting “no.” The meeting was officially adjourned at 12:20 p.m.

Submitted by,

Carol Intlekofer, MMC
City Clerk

This notice is available in alternative, accessible formats upon request.

Published: Wyoming Tribune-Eagle
November 11, 2008